PURCHASE AND SALE AGREEMENT

Upland Plaza | Salt Lake City, UT

Seller	Tallgrass Equity Group
Buyer	Juniper Peak Real Estate Fund
Property	Upland Plaza, 1514 Lakeview Avenue, Salt Lake City, UT 78986
Purchase Price	$55,200,000
Effective Date	March 23, 2023

1. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Upland Plaza, located at 1514 Lakeview Avenue, Salt Lake City, UT 78986, consisting of 367,992 SF, together with all improvements, fixtures and appurtenances. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

2. Purchase Price. The purchase price for the Property shall be $55,200,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

3. Earnest Money Deposit. Within 25 business days after the Effective Date, Buyer shall deposit $1,104,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

4. Due Diligence Period. Buyer shall have 44 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

5. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

6. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

7. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

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8. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

9. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

10. Closing. Closing shall occur on or before May 7, 2023, through escrow with Cornerstone Title Agency. Possession shall be delivered to Buyer at Closing. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

11. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

12. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Upland Plaza, located at 1514 Lakeview Avenue, Salt Lake City, UT 78986, consisting of 367,992 SF, together with all improvements, fixtures and appurtenances. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

13. Purchase Price. The purchase price for the Property shall be $55,200,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

14. Earnest Money Deposit. Within 37 business days after the Effective Date, Buyer shall deposit $1,104,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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15. Due Diligence Period. Buyer shall have 46 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. Time is of the essence with respect to each and every provision of this instrument.

16. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

17. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

18. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

19. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

20. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

21. Closing. Closing shall occur on or before May 7, 2023, through escrow with Cornerstone Title Agency. Possession shall be delivered to Buyer at Closing. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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22. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

23. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Upland Plaza, located at 1514 Lakeview Avenue, Salt Lake City, UT 78986, consisting of 367,992 SF, together with all improvements, fixtures and appurtenances. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

24. Purchase Price. The purchase price for the Property shall be $55,200,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

25. Earnest Money Deposit. Within 27 business days after the Effective Date, Buyer shall deposit $1,104,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

26. Due Diligence Period. Buyer shall have 11 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

27. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

28. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

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29. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

30. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

31. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

32. Closing. Closing shall occur on or before May 7, 2023, through escrow with Cornerstone Title Agency. Possession shall be delivered to Buyer at Closing. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

33. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

34. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Upland Plaza, located at 1514 Lakeview Avenue, Salt Lake City, UT 78986, consisting of 367,992 SF, together with all improvements, fixtures and appurtenances. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

35. Purchase Price. The purchase price for the Property shall be $55,200,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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36. Earnest Money Deposit. Within 47 business days after the Effective Date, Buyer shall deposit $1,104,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

37. Due Diligence Period. Buyer shall have 47 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

38. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

39. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

40. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

41. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

42. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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43. Closing. Closing shall occur on or before May 7, 2023, through escrow with Cornerstone Title Agency. Possession shall be delivered to Buyer at Closing. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

44. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

45. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Upland Plaza, located at 1514 Lakeview Avenue, Salt Lake City, UT 78986, consisting of 367,992 SF, together with all improvements, fixtures and appurtenances. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

46. Purchase Price. The purchase price for the Property shall be $55,200,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

47. Earnest Money Deposit. Within 10 business days after the Effective Date, Buyer shall deposit $1,104,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

48. Due Diligence Period. Buyer shall have 24 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

49. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

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50. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

51. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

52. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

53. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

54. Closing. Closing shall occur on or before May 7, 2023, through escrow with Cornerstone Title Agency. Possession shall be delivered to Buyer at Closing. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

55. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

56. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Upland Plaza, located at 1514 Lakeview Avenue, Salt Lake City, UT 78986, consisting of 367,992 SF, together with all improvements, fixtures and appurtenances. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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57. Purchase Price. The purchase price for the Property shall be $55,200,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

58. Earnest Money Deposit. Within 9 business days after the Effective Date, Buyer shall deposit $1,104,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

59. Due Diligence Period. Buyer shall have 16 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

60. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

61. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

62. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

63. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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64. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

65. Closing. Closing shall occur on or before May 7, 2023, through escrow with Cornerstone Title Agency. Possession shall be delivered to Buyer at Closing. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

66. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

67. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Upland Plaza, located at 1514 Lakeview Avenue, Salt Lake City, UT 78986, consisting of 367,992 SF, together with all improvements, fixtures and appurtenances. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

68. Purchase Price. The purchase price for the Property shall be $55,200,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

69. Earnest Money Deposit. Within 44 business days after the Effective Date, Buyer shall deposit $1,104,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

70. Due Diligence Period. Buyer shall have 37 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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71. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

72. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

73. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

74. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

75. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

76. Closing. Closing shall occur on or before May 7, 2023, through escrow with Cornerstone Title Agency. Possession shall be delivered to Buyer at Closing. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

77. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Tallgrass Equity Group

By: Rachel Hughes Title: Managing Member Date: 03/23/2023

_____

Summit Engineering

By: Hannah Xu Title: Authorized Signatory Date: 03/23/2023

Exhibit A - Property

Upland Plaza, 1514 Lakeview Avenue, Salt Lake City, UT 78986. Parcel containing approximately 3.87 acres, together with all improvements thereon.

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